

The Claremont City Council held a meeting on Wednesday, May 10, 2017, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Bergeron at 6:30 p.m.

Members of the Council present were:

Ward I Councilor Carolyn Towle
Ward II Councilor Scott Pope
At-Large Councilor Keith Raymond
Assistant Mayor Victor Bergeron
At-Large Councilor Allen Damren
At-Large Councilor Bruce Temple
Ward III Councilor Nicholas Koloski
At-Large Councilor John Simonds

Absent:

Mayor Charlene Lovett

Also present were:

Ryan McNutt, City Manager
Jane Taylor, City Solicitor

AGENDA CHANGES

Mr. Bergeron said the Rogue Robotics Team would give a presentation after Appointment to Boards and Committees.

REPORT OF THE SECRETARY

A motion was made by Mr. Damren and seconded by Ms. Towle to accept the minutes of the April 12, 2017, City Council meeting.

Voice vote: motion carried 8-0.

A motion was made by Mr. Koloski and seconded by Mr. Damren to accept the minutes of the April 26, 2017, City Council meeting.

Voice vote: motion carried 8-0.

MAYOR'S NOTES

Stevens High School Alumni Proclamation

Mr. Bergeron presented a proclamation to the Stevens High School Alumni proclaiming the week of June 4th as Stevens High School Alumni Week.

Mr. Bergeron read a list of notes from Mayor Lovett:

- Thanks to all for the community-wide clean-up. 1700 tires were dropped off at the Transfer Station on "Tire Day."
- May 29th is Memorial Day. The Derosier and Formichelli families lost loved ones in the Vietnam War and they will be honored during the ceremony.
- Grand opening of REMIX will be Friday, May 12, 6-10 p.m.
- SB191, funding for full-day kindergarten, and SB247, the lead bill, both passed the House and are now in the House Finance Committee. If SB191 is signed into law, the Claremont School District will receive approximately \$300,000 annually for full-day kindergarten. If SB247 is signed into law, NH will universally test 1 and 2 year old children for lead poisoning and property owners will have access to funding to help remediate lead in their homes.
- The budget discussions begin tomorrow.

CITY MANAGER'S REPORT

Mr. McNutt reviewed his report that was submitted in the Council packet including that the Police voted to accept their contract. It is a three-year agreement. It will bring pay more in line with comparable communities in order to maintain people we hire and train. Healthcare percentages will change from 90/10 to 88/12 over the three years. New hires will be 80/20. Other items included Public Works cleanup removed 1.7 tons of trash and litter, plus approximately 1700 tires; upcoming events including Police Bike Auction on May 13th. Mr. McNutt said the Drug Take Back Day resulted in eight boxes of medication being received by the Police Department. He acknowledged that the Ink Factory won a 2017 Annual Historic Preservation Award for reuse and repurposing of a historic mill.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Mr. Pope and seconded by Mr. Damren to re-appoint Jeffrey Chase to Seat 6 – At Large.

Voice vote: motion carried 8-0.

Mr. Bergeron said that Mayor Lovett has appointed three members to the Council's Ad Hoc Finance Committee: Allen Damren, Bruce Temple and Charlene Lovett.

Rogue Robots

Pam Numme, 4-H Rogue Robots, said the team is headed to the national SeaPerch competition for the second year in a row. The team is call JAMS and consists of Josh, 13; Alison, 15; Matt, 17; and Steven 18. Josh described the challenge and they completed it in 1 minute and 14 seconds. Matt said it is an ROV, remotely operated vehicle. Alison said this is a STEM-based club and through the SeaPerch competition, they learn underwater principals.

Ms. Numme said there will be a fundraiser tomorrow night at the Common Man and on May 13th at the Home Depot, there will be a race car build and an exhibit of other projects.

Mr. Koloski asked if they can use component donations. Ms. Numme said they could use more Legos and laptop computers.

Mr. McNutt asked where to send financial donations. Ms. Numme said to Rogue Robots 4-H, 94 Roberts Hill Road, Claremont. She said the group's main overhead is partial rent at the old Diana Love Center; they could use money for tools, wood, and gift cards to Home Depot.

CITIZEN'S FORUM

George Caccavaro, Chair of the Fiske Free Library Board of Trustees, read from his Letter to the Editor expressing his concern for the proposed cut in staff at the Library. He said this is the least costly department in the City. He said with the cuts, the Library will be unable to provide services the public has become used to. He requested all concerned residents to contact the Council to express support for the Library.

Mr. Caccavaro read a letter from Bethany Yurek saying that a fully staffed and funded Library is paramount and that the City should expand the good works of the Library. She said the Library is an integral part of the community.

Mr. Caccavaro quoted RSA 202-A:4 Maintenance regarding the adequate funding of the Library.

Bob Arcand, Fiske Free Library Board of Trustees, asked the Council to reconsider the proposed cuts saying the \$156,000 cut to the Library budget is unacceptable.

Mr. Arcand said he is also a Southwestern Community Services employee and that he hoped the Council would consider fully funding SWCS's transportation request.

**PUBLIC INFORMATION SESSION– RICE RESERVOIR SPILLWAY
RECONSTRUCTION**

Scott Sweet, Public Works Director, said this is a requirement for a state permit. The public has to be notified 30 days before lowering the water in the Rice Reservoir. It will be lowered three feet. This is a spare reservoir and it won't affect anyone's water. This is a 10.6-acre reservoir.

Mr. Bergeron asked how long this will take. Mr. Sweet said 2-3 weeks.

Mr. Temple asked who the low bidder is. Mr. Sweet said Granite State and the bid was for \$117,000.

OLD BUSINESS

Ordinance 554 Zoning – Accessory Dwelling Units – Second Reading – Public Hearing

The purpose of this proposed ordinance is to ensure that the Claremont City Code will comply with changes to state law regarding accessory dwelling units that go into effect June 1, 2017. The Code's current provisions regarding accessory dwelling units do not comply with the new law and will not be enforceable after June 1. Additionally, if the City does not adopt provisions that comply with state law regarding accessory dwelling units, such units will be permitted as a matter of right and will not be subject to any requirements, other than obtaining appropriate building permits.

Enactment of this ordinance will bring the Claremont City Code into compliance with state law regarding accessory dwelling units.

The Planning Board, by unanimous vote on March 27, 2017, has recommended approval of the adoption of the zoning amendment language.

Mr. Temple asked if there would be separate meters; if the homeowner would be responsible for water in that unit; and about capacity fees.

Mike McCrory, Planner, said that would have to be discussed with Public Works.

Ms. Taylor said it would have to be looked at as part of the permit. Separate systems are not required by state law, but you have to show you have adequate systems for the accessory dwelling unit (ADU).

Mr. Pope said this would go through the building permit process and would need Planning Board approval. Mr. McCrory agreed. The ordinance restricts ADUs to be a part of a single family dwelling. It cannot be a separate unit. The Assessing Department will track ADUs.

A motion was made by Mr. Koloski and seconded by Mr. Simonds to adopt Ordinance 554 Zoning – Accessory Dwelling Units.

Mr. Koloski read the explanation of proposed action.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 8-0.

NEW BUSINESS

Sullivan County ATV Club Annual Trail Permission

Dianne Harlow, Ward 3 resident and Sullivan County ATV Club (SCATV) member, said this is the annual request to use trails on City-owned property. The permission does not include the Rail Trail. It includes trails in the Cat Hole area, Arrowhead area and on Veterans Park Road. The trails open May 23rd. Regarding the Rail Trail, four other towns had the Rail Trail shut down. The Bureau of Trails, NH Department of Transportation, Executive Councilor Joseph Kenney, Senators Hassan and Shaheen, Congresswoman Kuster, City Manager McNutt, City Solicitor Taylor and the SCATV Club will get together on this. It will have to go to Washington to change the legislation.

Ms. Taylor said there are also two or three other states running into this issue.

A motion was made by Mr. Raymond and seconded by Mr. Damren that the Claremont City Council, pursuant to RSA 215-A:15, hereby authorizes the city manager, or his designees, to take such actions as may be necessary to issue a written Permission for Wheeled Vehicle Trail Access to the Sullivan County ATV Club for a period of one year from the expiration of the current Permission. This Permission is for use of designated City-owned land and class VI highways, which lists are to be included with the Permission Form and is subject to all City and state rules and regulations pertaining to use of ATVs and other off-highway recreational vehicles on public property. This Permission is granted subject to the following conditions:

- 1. The City may close one or more parcels of land, trails or roads to ATV use for reasons including but not limited to trail conditions, maintenance and public safety.**

Voice vote: motion carried 8-0.

Motion to Authorize Sale of Properties Acquired by Tax Deed

Ms. Taylor said there is one change from the original chart, removing one property from the Decline to Take list. Now there are only four properties on that list. The deadline to pay is May 19th, so some property owners may come in to pay before the deadline. The four properties we don't want to take have environmental issues. Previously, the City has declined to take mobile homes because we don't want to have to pay rent to landlords. Now we're going to find a way to change that. To come off this list, property owners have to pay what is owed through 2013.

Ms. Taylor said the correction on the motion to Refuse to Take, is to remove Map 128-13, because they came in and paid the taxes.

Ms. Taylor gave a brief review of the previous sale process. First, there was a request for bids, but not everything was sold. Second, there was an auction and that went pretty well. She said the auction was a good way to go. The auction company took care of all the details. One property sold for more than what was owed. The buyers paid the premiums. There was

essentially zero cost to the City. She said once the deed is taken, letters are sent to the current owners who have a certain number of days to notify the City if they want to buy it back, then they have to pay all taxes to current. The City can't sell the property until the 91st day after notices go out.

Mr. Koloski asked how it determined which properties not to take. Ms. Taylor said by statute the City doesn't have to take undesirable liabilities. The list is circulated among the departments to determine if there are any specific reasons why the City would not want to take any of the properties. A search is done of the DES (Department of Environmental Services) online site to see if any properties appear on the contaminated site lists and if so, those are placed on the Do Not Take list.

Mr. Pope asked about making property owners aware. Ms. Taylor said they are notified every year that they don't pay the taxes. A separate letter is sent when added to the lien list and then another letter after April 15th of impending tax sale.

Mr. Koloski asked about the eviction process. Ms. Taylor said if the property is occupied, there would be a formal eviction process.

A motion was made by Mr. Damren and seconded by Mr. Raymond that the City Council, pursuant to RSA 80:80, hereby authorizes the Mayor, or her designees, to transfer title to any real estate acquired as the result of default of redemption of nonpayment of taxes, by public auction or by advertised sealed bid or to dispose of all tax deeded property, unless refused, in such manner as justice may require, such authority to be effective indefinitely until rescinded.

The City Council authorizes the Tax Collector to record at the Sullivan County Registry of Deeds all transfers of such property as may occur. The City Council further authorizes the City Manager or his designees to undertake all such actions as may be required to implement this motion.

Voice vote: motion carried 8-0.

Motion to Refuse Tax Deeds

A motion was made by Mr. Simonds and seconded by Ms. Towle that the City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:

73-1	Winter Street
119-354	39 Central Street
73-15	10 Fitch Reservoir Road

The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

Voice vote: motion carried 8-0.

City Fee Schedule – Public Hearing

Ms. Merrill said the building permit fees changes were not included in the packet, so she handed them out.

Ms. Taylor said this is the City Manager's Fee Schedule and it is up to the Council to vote to approve or not.

There was a discussion of the changes. Mr. McNutt said changes are based on comparisons to other communities and the costs.

Ms. Merrill asked about changing the cost per page for MIS on page 10. There was a consensus of the Council to change 8 ½" x 11" copies on the MIS (Management Information Systems) page to 50 cents each.

A motion was made by Mr. Pope and seconded by Mr. Damren to accept the City Fee Schedule with the MIS cost per page change and the Planning and Development Building Permit Fees changes.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Voice vote: motion carried 8-0.

Motion to Reestablish a Portion of Myrtle Street Right-of-Way

Kurt Beek, Project Manager, showed a PowerPoint presentation of Safe Routes to School Local Public Agency Project, NHDOT/City of Claremont – Sidewalk reconstruction on Belding and Myrtle Streets. A licensed surveyor went out to establish the existing rights-of-way (ROW). Belding Street's original layout was done in 1895. The surveyor will establish a new ROW and create a plat and then it is up to the Council to approve the plat. Once approved, a copy of the plat will be sent to all abutters, NH Secretary of State and the Claremont City Clerk. Abutters will be given 60 days to file any grievance to the Superior Court. Proposed improvements for Belding Street are all new sidewalks on south side of the road, including ADA ramps, signing,

striping, curb and asphalt sidewalk. Proposed improvements for Myrtle Street are new sidewalks starting at Tyler and ending just west of Forest Street.

A motion was made by Mr. Damren and seconded by Ms. Towle that

Whereas, over time, the original highway boundaries of Myrtle Street from approximately 50 feet east of its intersection with Mulberry Street, westerly to approximately 50 feet west of its intersection with Forest Street have become lost, uncertain or doubtful because the majority of references needed to identify the original boundaries have disappeared; and

Whereas, pursuant to RSA 231:27, the City Council may reestablish the boundary lines, limits and locations of the City's public highways;

Now therefore, the City Council hereby authorizes the reestablishment of the highway boundary lines of a portion of Myrtle Street from approximately 50 feet east of its intersection with Mulberry Street, westerly to approximately 50 feet west of its intersection with Forest Street.

The City Council further authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to reestablish this portion of Myrtle Street pursuant to the procedures set forth in RSA 228:35.

The City Council further authorizes the City Manager or his designees to negotiate and enter into such easement and/or encroachment agreements with abutting property owners as may be appropriate and necessary for purposes of reestablishing the Myrtle Street right of way, such agreements to be filed in the Sullivan County Registry of Deeds.

Voice vote: motion carried 8-0.

Motion to Reestablish Belding Street Right-of-Way

A motion was made by Mr. Simonds and seconded by Mr. Raymond that

Whereas, over time, the original highway boundaries of Belding Street from its intersection with North Street, northeasterly to its intersection with Hanover Street have become lost, uncertain or doubtful because the majority of references needed to identify the original boundaries have disappeared; and

Whereas, pursuant to RSA 231:27, the City Council may reestablish the boundary lines, limits and locations of the City's public highways;

Now therefore, the City Council hereby authorizes the reestablishment of the highway boundary lines of a portion of Belding Street from its intersection with North Street, northeasterly to approximately its intersection with Hanover Street.

The City Council further authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to reestablish this portion of Belding Street pursuant to the procedures set forth in RSA 228:35.

The City Council further authorizes the City Manager or his designees to negotiate and enter into such easement and/or encroachment agreements with abutting property owners as may be appropriate and necessary for purposes of reestablishing the Belding Street right of way, such agreements to be filed in the Sullivan County Registry of Deeds.

Voice vote: motion carried 8-0.

Ratification of Union Contracts

Mr. McNutt said he had sent Councilors a copy of the proposed Police contract.

Mr. Temple said this is a three-year agreement with 6%, 3% and 3% increases. He asked for clarification of the signing bonus.

Mr. McNutt said that after the police officers are trained, they sign an agreement to stay for three years. After the three years are up, some are taking that experience and going off to other communities and agencies, and Claremont loses all that experience. Sometimes there are gaps in the upper levels because of the turnover. The signing bonus will help the City to hire trained and certified officer(s). It could be used for entry level, if desired, but the intent is for experienced officers.

Mr. Temple was concerned that Public Works would not be getting similar bonuses.

Mr. McNutt said he takes all union negotiations separately and they are not compared one to the other. The Police Department believes this will help them get back to full staffing and will help to reduce stress in the department.

Police Chief Mark Chase said the current contract expired at the end of last year. This contract makes Claremont somewhat competitive to other agencies.

Mr. Pope asked about staffing. Chief Chase said there are two openings and one will retire soon. Two are just out of the Academy and will take 8-12 weeks to get out on their own. Two officers are in the Academy and two officers are scheduled to go to the Academy in the fall. The Academy is 16 weeks long. There is a small amount of the workforce doing all the work of the entire force. Also, there is an officer out on medical leave right now. The officers are working a lot of overtime.

Mr. Temple talked about setting a precedent.

Mr. McNutt would have preferred that the Police accepted a zero increase. He saw no way around it. He commended Public Works because they accepted zero. He does not see this as setting a precedent.

A motion was made by Mr. Koloski and seconded by Mr. Damren that the Claremont City Council hereby approves a Collective Bargaining Agreement between the City of Claremont and NEBA, Local 217 (Claremont Police Union), which calls for the following increases in salary and benefits:

<u>Year</u>	<u>Estimated Increase (Salary & Benefits)</u>
FY 2017	\$10,226
FY 2018	\$57,352
FY 2019	\$168,810
FY 2020	\$190,253

Said sums represent the additional costs attributable to the increase in salaries and benefits over those funds appropriated at current staffing levels. The increase for 2017 will use unspent funds due to vacancies from the fiscal year 2017 budget. The increase for 2018 is included in the proposed fiscal year 2018 budget, with no additional impact on the tax rate.

The City Council further authorizes the city manager, or his designees, to take such actions as may be necessary to implement this motion.

Mr. Temple said he will vote in favor of this. He expressed his concerns tonight, the same as he did 18 months ago. These amounts are guaranteed in the future. If we don't grow the tax base, the tax bill will increase. He is concerned that for the next contract, Public Works will come back to the negotiating table looking for salary increases.

Mr. Simonds said he will abstain due to a conflict.

Roll call vote: motion carried 7-0, with 1 abstain (Mr. Simonds).

Ms. Towle asked if Chief Chase would come back in six months with an update. Chief Chase said he could do that.

Ordinance 555 Amend Chapter 2, Article V, Merit System – First Reading

The purpose of this proposed change is to revise the provision of the Merit Plan related to health insurance.

Enactment of this Ordinance will revise Section 2-401(a) by: 1) eliminating reference to a specific health insurance plan so that the Code does not need to be amended every time the City changes the health insurance plan offered to Merit Plan employees; and 2) clarifying the provision related to employees opting out of the City's health insurance plan.

Ms. Walter said that Merit Plan employees don't get raises based on "the best of the best" union agreements, but do get health insurance based on that. Last time, Merit employees took the Fire union plan. The City has worked to get the health insurance more in line with the public sector. Insurance for new people will be 80 (City pays)/20 (employee pays). There is a step increase to change this so that current City employees will eventually step down. If this is approved, the

insurance will go from an HMO 0/20/30 plan to an HMO 0/25/40 plan. There are no raises. Moving to the new plan will save the City almost \$60,000.

Mr. McNutt said that on a future agenda in June, he'll ask the Council to amend his contract to change his insurance to 80/20.

Mr. Damren asked if the new insurance is a lower cost. Ms. Walter said yes; it is a comparable plan. The City is paying almost \$2 million a year in health insurance premiums.

Mr. Bergeron said this is not just for working employees, it's also for retirees. Ms. Walter said there are almost as many retirees as employees.

Ms. Taylor said there are two documents because Claremont has the Merit Plan in the ordinance and there is a separate Merit Plan document. The ordinance will change the Code. The details of the health plan are not in the ordinance, so when there is a health plan change, you won't have to have a Code change. The resolution will cover the Merit Plan language.

A motion was made by Mr. Damren and seconded by Ms. Towle to adopt Ordinance 555 Amend Chapter 2, Article V, Merit System on first reading.

Mr. Damren read the explanation of proposed action into the record.

Voice vote: motion carried 8-0.

Resolution 2017-42 Amend the Merit Plan – Public Hearing

The city administration has undertaken a review of and sought proposals from health insurance providers as part of ongoing efforts to control the cost of health insurance plans offered to City employees. The City has selected a new health insurance carrier for its employee health insurance plan, effective August 1, 2017. The City's nonunion employees are subject to the provisions of the Merit Plan and are not governed by collective bargaining agreements. The Merit Plan must be revised so that changes to the health insurance plan offered to nonunion full-time City employees can be put into effect. The Personnel Advisory Board has approved these changes. If approved, this will be effective 30 days after adoption.

A motion was made by Mr. Raymond and seconded by Mr. Damren to adopt Resolution 2017-42 Amend the Merit Plan.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 8-0.

Resolution 2017-43 Moody Park Road Improvements – Public Hearing

The City Council, on December 12, 2012 by adoption of Resolution 2012-26, established a Capital Reserve Fund for Parks and Recreation Access Road Improvements for the purpose of improving access roads to various City parks and recreational facilities. The City plans to improve the access road for Moody Park. The cost of such Moody Park access road improvements is anticipated to be not more than \$5,000.00. The City would like to withdraw up to \$5,000.00 from the Capital Reserve Fund for Parks and Recreation Access Road Improvements to pay for improvements to the Moody Park access road. The money will come from the Capital Reserve Fund for Parks and Recreation Access Road Improvements (to have no impact on the tax rate).

Mark Brislin, Parks and Recreation Director, said a couple of years ago, the City turned the road to dirt. A couple of potholes, the crown of the road, and a couple of ditches need repair. Public Works will do the work.

A motion was made by Mr. Simonds and seconded by Mr. Raymond to adopt Resolution 2017-43 Moody Park Road Improvements.

Mr. Bergeron opened the public hearing. No one spoke. He closed it.

Roll call vote: motion carried 8-0.

There was a consensus of the Council to hold the public hearing on the 2018 budget on June 14th.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Temple asked for a follow-up on the Moody Park map(s).

Mr. Koloski thanked the Public Works folks for their work on replacing the pavers outside City Hall.

Mr. Bergeron reminded everyone that the budget discussions start tomorrow at 6:30 p.m. The budget meetings will not be open to public discussion. A public hearing for the budget will be held June 14th.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:43 p.m., a motion was made by Mr. Simonds and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council